

HOUSE No. 95

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to assuring a jumpstart in investments in telecoms to preserve access to the internet.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 95

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 95) of David Allen Robertson relative to the awarding of money to municipal agencies for the purpose of expanding, founding, advertising or maintaining of publicly-administered broadband internet service providers. Advanced Information Technology, the Internet and Cybersecurity.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 78 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to assuring a jumpstart in investments in telecoms to preserve access to the internet.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws, as appearing in the 2018 Official Edition,
2 is hereby amended by inserting after section 35PPP, as added by chapter 227 of the acts of 2020,
3 the following section:-

4 Section 35QQQ. (a) There shall be established upon the books of the commonwealth a
5 separate fund to be known as the Municipal Broadband Development Fund, which shall be
6 subject to further appropriation. The fund shall be expended for the purposes set forth in section
7 10 of chapter 25C.

(b) The state treasurer may receive and expend monies received from: (1) state appropriations; (2) gifts, grants and donations from public or private sources; (3) appropriate federal reimbursements, grants-in-aid or other monies credited or transferred from any other fund or source pursuant to law; and (4) any interest earned from the Municipal Broadband Development Fund. Such funds shall be impressed with a trust and held for the purposes of said section 10 in the Municipal Broadband Development Fund. The treasurer may receive, deposit and invest funds held for the purposes of said section 10 in a manner that will ensure the highest interest rate available consistent with the safety of the Municipal Broadband Development Fund.

SECTION 2. Chapter 25C of the General Laws, as so appearing, is hereby amended by adding the following 2 sections:-

Section 9. (a) The following words as used in this section and in section 10 shall, unless the context otherwise requires, have the following meanings:

“Broadband internet service provider” or “BISP”, a mass-market retail service by wire or fiberoptic cable that provides the capability to transmit data to and receive data from all or substantially all internet endpoints, including any capabilities that are incidental to and enable the operation of the communications service, but excluding dial-up internet access service or cellular, satellite or radio provided internet service; or set forth by the Federal Communications Commission or the department as a future equivalent of the provided service.

“Data Cap”, throttling, limiting, severance or purposeful interference of a data connection or transfer rate based on cumulative overall usage, the download or upload of data cumulative totals, or like measures over a defined time frame by an end-user subscriber of a BISP.

“End-User”, any subscriber of a broadband internet service provider.

“Municipal agency”, any department or office of a city or town government and any council, division, board, bureau, commission, institution, tribunal or other instrumentality thereof or thereunder.

“Net Neutral”, a BISP who does not partake in paid prioritization or data caps while maintaining open access for all end-users.

“Open Access”, freedom of an end-user to access any legally hosted and legal-to-view web-content, unless prohibited by law without additional cost or effort or reduction in internet access speed from a BISP.

“Paid prioritization”, the management of a broadband provider's network to directly or indirectly expedite or slow access by end-users of a BISP to any legally hosted and legal-to-view web-content, unless prohibited by law.

“Surcharge”, an additional fee, increased rate, or like instrument of financial burden on an end-user of a broadband internet service provider not charged on a recurring basis as part of providing service.

(b) The department shall create a net neutrality seal and certification review process as provided for in this subsection.

A BISP shall be deemed in compliance of a net neutral policy when a BISP does not participate in the practice of paid prioritization, ensures open access and is free of data caps or similar pricing surcharges based on internet usage by all end-users.

(c) A state agency, municipality, body politic or constitutional branch of the commonwealth shall not renew any contracts for telephone, broadband or other internet services

between the commonwealth and a BISP not compliant with net neutrality certification as provided for in subsection (b).

(d) The state treasurer, in conjunction with the department, shall levy and collect a surtax of not less than 50 per cent on any surcharge by a BISP to be deposited in the Municipal Broadband Development Fund established by section 35QQQ of chapter 10.

Section 10. (a) The department shall, in cooperation with the state treasurer or their appointee, develop a competitive bidding procedure for the awarding of money to a municipal agency for the purpose of expanding, founding, advertising or maintenance of a publicly-administered BISP provided the BISP adheres to net neutrality standards.

(b) Any recipient of monies from the Municipal Broadband Development Fund, established by section 35QQQ of chapter 10, found to be in violation of the provisions of net neutrality as provided for in section 9 shall repay any sum awarded plus 5 per cent of the awarded total to the Municipal Broadband Trust Fund.